

Contract Works Policy Comparison

Policy Comparison has been completed June 2024 by Irecon Insurance Services Pty Ltd (CAR No. 355956) of Insurance Advisernet Australia Pty Ltd (AFSL No. 240549). The information noted in this comparison is only valid as the date it was prepared and based on the Policy Wordings available at that time. Check with the Insurer in relation to updated Policy Wordings that may be available.

POLICY ITEM	IA/IRECON 01-06-2024	MECON Policy Wording AP1017	CGU Annual Contract Works & Legal Liability CID0009 REV 15 12/23	360 Contruction and Engineering 360CECWPWV322 effective 1 August 2022	360 Quick Construct 360 OCACNPWV423 effective 30 November 2023	MBA MBIB CGUCW V1 01-07-2020 MBIB CGU PPL V1 01-07-2020	HIA Insurance Services QM8226-1119 effective 7 November 2019	SURA SURCON ACP 10 -2023
CONTRACT WORKS								
Cover provided								
Physical loss or damage to the works	Yes	Yes	Requires physical damage to be 'sudden'	Yes	Physical loss or damage required to be sudden and unforeseen happening that has taken place at a specific point in time.	Yes	Yes	Yes but subject to being 'sudden', unforeseen and unintended'
Formwork, Hoardings, Temporary Buildings and Scaffolding	Automatically included	Requires separate Sum Insured	Requires separate Sum Insured when off-site and subject to Average.	Automatically included	Automatically included	Automatically included	Automatically included	Requires separate sum insured, subject to Average and covered on the Contract Site only
Testing and Commissioning	Automatic	Automatic, limited to 4 weeks	Automatic, limited to 4 weeks	Automatic, limited to the maximum testing and commissioning period	Automatic, limited to the maximum testing period stated in the Schedule	Automatically included	Automatic, limited to period specified in Coverage Summary	Automatic
Transit including coastal waters	Yes, up to selected sub-limit	Shipments in coastal waters limited to barge or roll on-off ferry	Yes. Cover provided up to estimated contract value unless another sum insured shown in Schedule.	Covered for fire, flood, collision and overturning of the conveyance or by theft or malicious damage within Territorial Limits but restricted to internal waterways.	Yes	Cover limited to \$500,000 or amount specified in Schedule	Covered for fire, tempest, flood, collision, and overturning of the conveyance or by theft or malicious damage within Territorial Limits but restricted to internal waterways.	Requires separate Sum Insured and applicable to inland conveyance only. Cover subject to specific Exclusions.
Off-site storage	Yes	Yes	Yes. Cover provided up to estimated contract value unless another sum insured shown in Schedule.	Yes	Yes	Cover limited to \$500,000 or amount specified in Schedule	Yes	Incorporated into transit Sum Insured
Defects Liability	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
Principal Supplied Materials	Automatic and included in Sum Insured	Requires separate Sum Insured	Automatic and included in Sum Insured	Automatic and included in Sum Insured	Automatic and included in Sum Insured	Requires separate Sum Insured	Automatic and included in Sum Insured	Not covered unless stated in policy Schedule
Existing Structures	Available if required	Available if required	Specifically excluded	Available if required. Subject to 90% average	Available if required. Subject to 80% average	Available if required	Available if required	Available if required but subject to Average

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Contractors Plant	Available if required	Available if required	Available if required	Major plant covered on the contract site. Minor plant covered within the territorial limits . Major and minor plant subject to sub-limits specified in the schedule and 90% average.	Available if required Subject to 80% average	Available if required	Available if required. Major plant subject to 90% Average	Limited cover available. Subject to Average, cover restricted to Contract Site only and excludes hired in equipment
Basis of Settlement – Works	Reinstatement	The same but not better than its condition immediately before the loss or damage	Condition immediately before the damage	Condition immediately before the damage for repairable damage. Reinstatement in case of total loss.	Condition immediately before the Event for repairable damage. Reinstatement in case of total loss.	Reinstatement	Reinstatement	Condition immediately before the damage
Basis of Settlement – Existing Property	Reinstatement	The same but not better than its condition immediately before the loss or damage	Not applicable	Condition immediately before the damage for repairable damage. Reinstatement in case of total loss.	Condition immediately before the Event for repairable damage. Reinstatement in case of total loss.	Reinstatement	Reinstatement	Condition immediately before the damage
Basis of Settlement – Plant	Reinstatement except items 3 years or older which Indemnity Value	Reinstatement except items 24 months or older which Market Value	Reinstatement except items 24 months or older which Market Value	Market Value	Market Value	Reinstatement except items 2 years or older which Market Value	Market Value	Reinstatement except items 2 years or older which Market Value
Escalation	10.00%	20.00%	15.00%	15.00%	Provision included in policy though refer Schedule for amount.	Provision included in policy though refer Schedule for amount	15.00%	Sum Insured to be stated in the Schedule. Standard amount unknown.
Removal of Debris	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
Professionals' Fees	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
Expediting Expenses	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
Mitigation Expenses	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
Search and Locate Costs	Yes even if there is no damage	Restricted to damage covered by the policy. Cover limited to \$200,000 in the aggregate unless otherwise specified	Restricted to damage covered by the policy. Cover limited to \$50,000 unless otherwise specified	Yes even if there is no damage. Cover limited to \$50,000 unless otherwise specifiied in the schedule.	No	Restricted to damage covered by policy. Cover limited to \$50,000 unless otherwise specified	Yes even if there is no damage. Cover limited to \$50,000.	Yes even if there is no damage
Plant Hire Charges	Yes	No	No	No	No	Available by endorsement. Cover limited to \$50,000 unless otherwise specified.	Available by Endorsement.	No

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Claim Preparation Costs	Yes	Yes, limited to \$10,000	No	Available by endorsement. Limited to \$5,000.	No	Yes	Yes. Limited to \$5,000.	Yes
Government Costs	Yes	No	Yes, subject to maximum of \$50,000 and limited to reinstatement or replacement	No	Yes	Yes	Yes	Yes
Inflation Protection	Yes	No	No	No	No	No	Yes	No
Sue and Labour	Yes	No	No	No	No	No	No	Yes
Plot Ratio Indemnity	Yes	No	Yes	No	Yes	No	No	No
Civil Authority	Yes	No	No	No	No	No	No	Yes
Marine/non marine loss sharing	Yes	Yes	Yes	No	No	No	No	No
Local Authorities	Yes	No	Yes, subject to maximum of \$100,000	No	No	No	No	Yes
Output Replacement	Yes	No	No	No	No	No	No	No
Undamaged Foundations	Yes	Yes	Yes	Yes	Yes	No	Yes	No
Key Exclusions								
Defects of material, workmanship, design, plan or specification	LEG 2	DE4 with modification to include \$50,000 for removal and disposal of undamaged items to enable damaged items to be repaired, replaced or rectified	LEG2	LEG2	Exclusion limited to the machine, structure or works immediately affected and will not exclude loss of or damage to work properly carries out resulting from such fault, defect, error or omission.	DE4	DE5/DE4 Access costs limited to \$25,000	DE4
Liquidated Damages/penalties	Excluded	Excluded	Excluded	Excluded	Excluded	Excluded	Excluded	Excluded
Corrosion, wear and tear	Excluded but resultant damage covered	Excluded	Excluded but resultant damage covered	Excluded	Excluded	Excluded but resultant damage covered	Excluded	Excluded
Inventory shortage	Excluded unless can be reasonably attributed to burglary or theft	Excluded unless Insured can prove the time and cause of loss	Excluded	Excluded unless can be attributed to burglary	Excluded unless can be attributed to burglary or theft	Excluded unless can be attributed to burglary.	Excluded unless can be attributed to burglary	Excluded unless can be reasonably attributed to burglary
Breakdown of construction plant	Excluded but consequential damage covered	Excluded	Excluded	Excluded	Covered????	Excluded	Excluded	Excluded

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Cessation of work	Excluded except for first 60 days	Excluded except first 60 days	Excluded except first 30 days. Applies immediately following abandonment. Also applies to Public Liability section.	Excluded except first 30 days. Also applies to Legal Liability section.	Excluded except first 60 days. Also applies to Legal Liability section.	Excluded except for first 60 days	Policy subject to review should cessation exceed 60 days. Also applies to Legal Liability section	Excluded except for first 60 days. Also applies to Liability section.
Damage due to faulty packing, faulty or defective storage	Not excluded	Not excluded	Not excluded	Not excluded	Not excluded	Not excluded	Not excluded	Not excluded
Pipe Trenches	Not excluded	Not excluded however endorsement may apply	Not Excluded	Not excluded however endorsement may apply	Not excluded	Not excluded	Not excluded however endorsement may apply	Excludes haul roads, borrow pits or quarries.
Piles/retaining walls	Not excluded but subject to conditions	No standard exclusion however endorsement may apply	Not excluded	Not excluded however endorsement may apply	Not excluded	Not excluded	Not excluded however endorsement may apply	Not excluded
Dewatering	Not excluded	Not excluded however endorsement may apply	Not excluded	Not excluded however endorsement may apply	Specifically covered in order to provide access for repairs.	Not excluded	Not excluded however endorsement may apply	Excluded subject to conditions
Road works	Not excluded	Not excluded however endorsement may apply	Not excluded	Not excluded however endorsement may apply	Not excluded	Not excluded	Not excluded however endorsement may apply	Haul roads excluded
Action of the sea	Not excluded	Not excluded however endorsement may apply	Not excluded	Not excluded	Not excluded	Not excluded	Not excluded	Not excluded
Conditions								
Non aggregation of Excesses	Yes	No	No	Yes	No	Yes	Yes	Yes
Excess application for fire, earthquake, cyclone, flood, storm and/or tempest	72 hours	96 hours	72 hours	72 hours	72 hours	72 hours	72 hours	72 hours
Progress payments	Yes	No	Yes	No	Yes	No	No	No
LEGAL LIABILITY								
Cover provided								
Applies to all insured projects irrespective of size	Yes	Limited to project value insured under policy	Limited to project value insured under policy	Limited to project value insured under policy	Yes?????	Yes unless excluded in Schedule	Limited to project value insured under policy	No
Occurrence based	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
Broad definition of Personal Injury	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes

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Broad definition of Property Damage	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
Products Liability	Automatic	Automatic	Requires specific selection.	Automatic	Covered if indicated in the Schedule as being operative	Automatic	Automatic	Automatic
Advertising Injury	Yes	Defamation cover only	Yes	No	No	yes	Yes	Yes
Defence Costs	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
Key Exclusions								
Products Liability in respect of projects whose value exceeds the Contract Works limit	Not excluded	Excluded	Excluded	Excluded	Not excluded?????	Not excluded unless shown as Work Limitations in Schedule	Excluded	Excluded
Contractual Liability	Limited exclusion with cover provided where such liability is usual to Insured's Operations	Excluded with some exceptions including Construction Contracts and Incidental Contracts (as defined)	Excluded with some exceptions including liabilities assumed under a Standard Contract (as defined) and plant hire agreements.	Excluded	Limited exclusion with cover provided where such liability is usual to Named Insureds Business. Usual to Named Insureds Business does not include indemnity to architect, engineer, surveyor or other professional for specified services.	Limited exclusion with cover provided for: -hire of machinery or equipment - liability assumed under a Construction Contract - liability assumed to note interest of government, local or statutory authority	Excluded with some exceptions	Excluded with some exceptions
Vibration, weakening or removal of support	Not excluded	Excluded unless Limit of Indemnity Shown in Schedule	Not excluded	Not excluded however endorsement may apply	Not excluded	Not excluded	Not excluded however endorsement may apply	Excluded unless sub-limit included in Schedule
Fines, penalties and liquidated damages	Excluded	Excluded	Excluded	Excluded	Excluded	Excluded	Excluded	Excluded
Workers Compensation/employers liability	Excluded	Excluded	Excluded	Excluded	Excluded	Excluded	Excluded	Excluded
Aircraft and Watercraft	Excluded however cover provided for non-owned craft which are used by the Insured for business entertainment. Watercraft exclusion does not apply to vessels under 12 metres in length.	Excluded though does not apply in respect of watercraft under 10 metres in length	Excluded though does not apply to vessels under 8 metres in length.	Excluded though does not apply in respect of watercraft under 8 metres in length	Excluded though does not apply in respect of watercraft under 10 metres in length	Excluded though does not apply in respect of watercraft under 10 metres in length.	Excluded though does not apply in respect of watercraft under 8 metres in length	Excluded though does not apply in respect of watercraft under 8 metres in length

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Demolition	Excluded on structures exceeding 20 metres in height or any contract involving only demolition work	Excluded on structures over 15 metres high unless specifically insured	Not excluded	Not excluded however endorsement may apply	Not excluded	Not excluded	Not excluded however endorsement may apply	Excluded for structures over 10 metres in height. Also applies to Contract Works except internal or non structural demolition.
Explosives	Not excluded	Excluded unless specifically insured	Not excluded	Not excluded however endorsement may apply	Not excluded	Not excluded	Not excluded however endorsement may apply	Excluded. Also applies to Contract Works.
Vehicles	Excludes Vehicles subject to statutory and non-statutory insurance however cover provided when loading and or whilst being used on or adjacent to the site.	Excluded where vehicle required to be registered and insured for third party bodily injury. Vehicles covered within 100 metres of worksite or place where normally stored.	Personal Injury excluded where vehicle required to be registered or compulsory insurance required. Exclusion does not apply to Property Damage during loading and unloading and being used as a tool of trade on site.	Excluded where vehicle required to be registered and insured for third party bodily injury. Vehicles covered on or about worksite	Excluded where vehicle required to be registered and insured for compulsory liability insurance. Exclusion does not apply to vehicle being used as a tool of trade.	Excluded where vehicle required to be registered and where statutory insurance is required. Cover applies during loading and unloading or where vehicle is being used as a tool of trade on site.	Excluded where vehicle required to be registered and insured for third party bodily injury. Vehicles covered on or about worksite Cover applies for Personal Injury where statutory scheme does not respond or Property Damage whilst being used as a tool of trade.	Excluded where vehicle required to be registered and where statutory insurance is required. Cover applies for Personal Injury where statutory scheme does not respond or Property Damage whilst loading and unloading, lifting or lowering or being used as a tool of trade.
Defective Product	Excluded however exclusion limited to that part which is in itself defective and cover provided in respect of resultant damage.	Excluded in respect of part containing defect	Excluded	Excluded	Excluded however exclusion limited to that part which is in itself defective and cover provided in respect of resultant damage.	Excluded however exclusion limited to defective or unsuitable part of a damaged product and does not apply to resultant damage	Excluded	Excluded if such damage is attributable to any defect in them or their harmful nature or unsuitability.

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Professional Liability	Excluded however exclusion does not apply for failure to render medical advice by medical persons employed to provide first aid.	Excluded however exclusion does not apply to Personal Injury, Property Loss or where advice not given for a fee.	Excluded however exclusion does not apply to Personal Injury, Property Loss or where advice is not given for a fee or arising out of rendering or failing to render medical advice by any employee (not being a qualified medical practitioner) to provide first aid	Excluded however exclusion does not apply for failure to render medical advice by medical persons employed to provide first aid.	Excluded however exclusion does not apply to Personal Injury, Property Damage or failure to render medical advice by medical persons employed to provide first aid.	Excluded however does not apply to: - Personal Injury or Property Damage up to \$1,000,000 in the aggregate in any one period of insurance - arising out of rendering or failing to render medical advice by any employee (not being a qualified medical practitioner) to provide first aid	Excluded however exclusion does not apply to personal injury or property damage	Excluded other than rendering or failing to render first aid.
Pollution and contamination	Excluded unless sudden and accidental	Excluded unless sudden and accidental Endorsement available to include Contractors Pollution Liability cover	Excluded unless sudden and accidental	Excluded unless sudden and accidental	Excluded unless sudden and accidental	Excluded unless sudden and accidental	Excluded unless sudden and accidental.	Excluded unless sudden and accidental
Asbestos Liability	Exposure to asbestos or materials containing asbestos excluded	Total exclusion	Total exclusion	Total exclusion	Total exclusion	Excludes inhalation, diminution in value, investigating, testing etc.	Total exclusion	Total Exclusion
Property in care custody or control	Limited exclusion which only applies to Insured's owned property and property insured under Contract Works section or similar policy	Cover subject to separate limit	Excluded but does not apply to tenanted premises, existing buildings/structures being worked upon, employees/visitors personal effects and vehicles in car park. Cover for other property limited to \$100,000.	Excluded but does not apply to: - property for use in connection with Insured Contracts - not exceeding \$100,000 any one occurrence and in the aggregate	Excluded but does not apply to: - property leased or rented, non owned vehicles in car park, clothing, personal effects of directors, employees, visitors. - premises occupied for work therein - amount stated in the Schedule	Excluded but does not apply to: - buildings temporarily occupied but excludes property being worked upon - non owned vehicles in car park - leased premises - other property to limit specified in Schedule	Excluded but does not apply to: - property for use in connection with Insured Contracts - not exceeding \$100,000 any one occurrence and in the aggregate	Excluded in respect of property where damage arises as a direct failure to take reasonable protective measures. Cover provided for vehicles in car park provided operating car park for reward is not part of the business.
Underground Services	Excluded unless specific conditions are met	Excluded unless specific conditions are met.	Excluded unless specific conditions are met	Excluded unless specific conditions are met	Not excluded	Not excluded	Excluded unless specific conditions are met	Excluded unless specific conditions met.
Cranes	Not excluded	Not excluded	Not excluded	Not excluded	Not excluded	Not excluded	Not excluded	Not excluded

APPLICABLE TO BOTH CONTRACT WORKS AND

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LEGAL LIABILITY								
Key Exclusions								
Terrorism	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
Nuclear	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
Electronic data	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Internet Operations only
War	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
Fungus, Mildew and Mould	No	Yes	Exclusion applicable to Contract Works cover only	Exclusion applicable to Contract Works cover only	Exclusion applicable to Contract Works cover only	No	Yes	Fungi exclusion applicable to Legal Liability cover only.
Communicable Disease	Yes, applicable to Contract Works only.	Yes	Yes, applicable to Contract Works only	Yes	Yes, applicable to Contract Works only.	No	No	Yes
Cladding	Excluded unless specific conditions met -applicable to Contract Works only	Excluded unless specific conditions met.	Not excluded	Not excluded	Not excluded			No
Conditions								
Cross Liability	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
Waiver of subrogation in favour of Insured's	Yes	Yes but definition of Insured is limited	Yes with special conditions regarding professional consultants and suppliers/manufacturers	Yes	Yes except where other party responsible for a Vitiating Act (as defined)	Yes with special conditions regarding professional consultants, suppliers and manufacturers	Yes	Yes
Severability/Non Imputation	No	No	Yes	No	Yes	Yes	No	No
Hold Harmless/Waiver of Subrogation Agreements	Will prejudice policy cover	Will prejudice policy cover	Will prejudice policy cover	Will prejudice policy cover	Will prejudice policy cover	Will prejudice policy cover except in respect of Public Authorities	Will prejudice policy cover	Will prejudice policy cover
Alterations in material fact	Does not prejudice cover subject to Insured notifying Insurers as soon as the alteration becomes known.	Requires immediate notification	Requires notification to Insurer no later than 30 days after any change. Increase in risk requires agreement in writing from Insurer.	Requires notification and Insurer agreement prior to cover being available	Requires notification and Insurer agreement prior to cover being available	Requires immediate notification of any material increase in risk	Requires notification and Insurer agreement prior to cover being available	Insured must notify as soon as they aware of any changes.
Difference in Conditions with Principals policy	Applies to Section 1 - Contract Works only. Cover provided for both policy coverage and Excess levels	Not covered	Cover provided for both policy coverage and Excess levels but only in respect of Public Liability	Not covered	Available subject to individual agreement and rating.	Applies to Contract Works only	Not covered	Cover provided to Named Insured only.
Risk Management/Reasonable Care	Detailed requirements	No specific requirements	Detailed requirements	Detailed requirements	Detailed requirements	Detailed requirements	Detailed requirements	Detailed requirements

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Hot Work	No specific Condition	No specific Condition	No specific Condition	Applicable to Legal Liability section, all welding and flame cutting must comply with AS1674.1 – 1997 Safety and Welding in Allied Processes	No specific Condition	No specific Condition	All cutting, welding and/or heating or similar activity to be carried out in strict compliance with AS1674.1 1997	No specific Condition
General								
Definition of Insured	Where required by contract automatically includes sub-contractors, Principals, Construction and Project Managers, Superintendents, Financiers, Government Agencies, any other party with an insurable interest	Principals automatically covered. All other parties require endorsement.	Automatically includes: Principal, Head Contractor or Project Manager, contractors and sub-contractors, suppliers/manufacturers/professional consultants where required under contract for manual activities on site, others named in the Schedule.	Where required by contract automatically includes Principal, head contractor, project manager , sub-contractors, consultants etc. in respect of work performed at the contract site	Automatically includes principal (vicarious liability only in respect of Legal Liability), partner, joint venturers, subcontractors in respect of in respect of their interest in the Contract Works or performance of an Insured Contract, and in respect of Contract Works any other person having a financial, legal or equitable interest in the Contract Works	Automatically includes Principals and where required by contract, contractors and sub-contractors, consultants etc for on-site activities.	Where required by contract automatically includes Principal, head contractor, project manager , sub-contractors, consultants etc. in respect of work performed at the contract site	Automatically includes the principal, project manager, sub-contractors (Section 1 only unless otherwise required by Contract). Architects, engineers, manufacturers and suppliers included for work on site only.